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U.S. Department of State Diplomacy in Action

Thailand

Bureau of Democracy, Human Rights, and Labor

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Thailand is a constitutional monarchy, with a population of more than 65 million. The king is revered and exerts strong informal influence. On September 19, in a bloodless coup d'etat, military coup leaders overthrew the government of Prime Minister Thaksin Shinawatra, which had won reelection in February 2005 in an election viewed as generally free and fair but marred by widespread vote buying. The coup leaders repealed the constitution, abolished parliament, declared martial law, and issued several decrees limiting civil liberties. On October 1, the military coup leaders, taking the name the Council for National Security (CNS), promulgated an interim constitution and established an interim government.

Following the September 19 coup, the CNS imposed some limits on freedom of speech, freedom of the press, and freedom of assembly. Prior to the coup, the government generally respected the human rights of its citizens; however, there were significant problems, some of which continued under the interim government. During the year security forces continued to use excessive force against criminal suspects and committed or were connected to dozens of extrajudicial, arbitrary, and unlawful killings. Reports of disappearances in the southern provinces, in many cases after the missing allegedly had been questioned by security officials, continued. There were reports that police tortured, beat, and otherwise abused detainees and prisoners, generally with impunity. The use of defamation suits and, in some cases, charges of sedition encouraged self censorship by the media and nongovernmental organizations (NGOs). Human rights workers, particularly those focusing on disappearances and the violence in the South, experienced government harassment. The country continued to be a source, transit, and destination for trafficking in women and children for a variety of purposes, including indentured servitude, forced labor, and prostitution. Members of hill tribes without proper documentation continued to face restrictions on their movement, could not own land, and were not protected by labor laws.

Violence by ethnic Malay separatist insurgents in the southern part of the country against symbols and representatives of government authority as well as against civilians resulted in hundreds of killings in the provinces of Narathiwat, Yala, Pattani, and Songkhla. The Thaksin government imposed an emergency decree for these provinces in July 2005 giving the police and civilian authorities significant powers to restrict certain basic rights and delegating certain internal security powers to the armed forces; the Emergency Decree also provides security forces broad immunity from prosecution. A separate martial law was decreed in September after the military coup, which provided a broader range of powers to the military alone.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

There were no confirmed reports of politically motivated killings by the government or its agents; however, security forces continued to use excessive, lethal force against criminal suspects and committed or were connected to numerous extrajudicial, arbitrary, and unlawful killings, including killings by security force personnel acting in a private capacity.

On March 27, gunmen in a pickup truck shot and killed Saharat Suramit, a land rights and forest encroachment issues activist from Sisaket. No suspects were detained and the case remains open.

On May 27, gunmen in a pick-up truck shot and killed former Thai Rak Thai (TRT) member of parliament (MP) Kobkul Nopamornbodee. A police bodyguard who was with her in the vehicle survived the shooting. Authorities arrested five of the alleged gunmen, including a subdistrict chief from Petchaburi. The sixth suspect, Sa-ngad Phumpheng, committed suicide before he could be apprehended. A former senator, Napintorn Srisunpang, was charged with planning the attack. He surrendered to police and was released on bail. The charges against Jamron Omthong and Suppharit Omthong were dismissed. Anont Phanrat, Winyu Ratanawanee, and Anantasak Srisawas were charged, and at year's end their cases were pending trial. Public prosecutors were considering whether to prosecute Napintorn Srisunpang.

On August 17, Mr. Charan lamphaibun, a leading activist for the Democrat Party in Prachinburi was shot and killed while in bed at his residence. No arrests were made, and at year's end the investigation was ongoing.

On October 20, unknown persons shot and killed Muhammad Dunai Tanyeen, a village headman and human rights activist in Narathiwat. He had actively assisted some of the 58 defendants in the 2004 Tak Bai case, in which 78 Muslim detainees died of asphyxiation (see sections 1.e and 1.g.). On October 3, he helped organize a meeting between a group called the Network for the Affected Population in Relation to Southern Violence and the newly appointed regional army commander. No arrests were made, and at year's end an investigation was ongoing.

On December 31, unknown persons conducted a series of bomb attacks at eight locations in Bangkok and Nonthaburi. Three persons were killed and 32 injured.

Bombings and targeted attacks occurred on an almost daily basis in the four southernmost provinces, resulting in deaths and injuries. Separatist violence directed against government and religious representatives, including teachers, monks, as well as district and municipal officials occurred throughout the year (see section 1.g.).

There were no developments with regard to the alleged October 2005 suicides of three Karen detainees.

There were no developments with regard to the August 2005 killing of Satopa Yushoh or the 2004 killings at Krue Se mosque; there were developments with regard to the September 2005 mob-killing of two marines and the 2004 killing of Imin Nehlae (see section 1.g.).

On November 2, the interim prime minister apologized for the 2004 deaths of 85 Muslims (78 of whom were asphyxiated while under detention) following a violent demonstration at Tak Bai. On November 6, the interim government announced that it would drop all charges against the demonstrators.

A November CNS white paper cited the 2003 extrajudicial killing of approximately 1,300 suspected drug traffickers during the Thaksin government's "War on Drugs" campaign as one of justifications for the September 19 coup. On December 14, the Ministry of Justice's Department for Special Investigations opened four investigations of possible extrajudicial killings associated with the 2003 War on Drugs.

Procedures for investigating suspicious deaths, including deaths occurring in police custody, required that the prosecutor, a forensic pathologist, and a local administrator participate in the investigation and that family members have legal representation at the inquests. However, these procedures often were not followed. Families rarely took advantage of a

provision in the law that allows them to bring personal lawsuits against police officers for criminal action during arrests.

According to the Ministry of Interior's Investigation and Legal Affairs Bureau, during the first six months of the year, 534 persons died in prison or police custody, 20 due to the actions of police officers. During all of 2005, 1,139 persons died in prison or police custody, 63 due to the actions of police officers. Authorities attributed most of these deaths to natural causes. Following an investigation into the 2003 death of a detainee at the Kanchanaburi police station, the provincial public prosecutor charged a police corporal with murder. In 2005 the provincial court dismissed the case due to lack of sufficient evidence. No appeal was filed.

The two gunmen charged in the 2004 killing of environmental activist Charoen Wataksorn confessed to the shooting but reportedly did not implicate in their confession three others suspected of planning the murder. During the year both men died in prison, prison officials attributed their deaths to natural causes. Some human rights groups requested an independent examination of the bodies, but none was granted. At year's end the trial of the other three suspects continued.

There were developments in the investigations of some of the 2005 campaign period killings of political activists. Five gunmen and the alleged planner, a Mahachon Party candidate, were arrested for the murder of Thiwa Phakpuppha, a TRT Party activist in Ayutthaya Province. Charges against the Mahachon Party candidate were later dropped; the trials of the five alleged gunmen were ongoing at year's end. The alleged planner and gunman also were arrested for the killing of Worayut Wutthaphanit, a candidate for the Nong-ri Tambon Administration Organization chairmanship. The gunman pleaded guilty, while the alleged planner maintained his innocence. At year's end the trial was ongoing. There were no developments with regard to other 2005 campaign period killings.

There were no developments with regard to the 2005 killings of journalists Phruttiphong Marohabut in February, Kiat Saetang also in February, Manop Ratanajaroongporn in June, and Santi Lamaneenil in November (see section 2.a.).

The investigation into the 2004 killing of Rapin Ruankaew, a Pattani provincial court judge, led to the arrest of one suspect, Abdunlo Pasi. At year's end his trial was ongoing. At year's end suspected accomplices Abdun Kama, Bueraheng Mama, and Unnungwa Kaso were at large.

In September 2005 a former village headman and four subordinates were sentenced to death for the 2003 killings of six Burmese migrant workers in Mae Sot. The defendants appealed the sentence, and at year's end the case remained pending in the appellate court.

According to the Thailand Mine Action Center, through August 31, four persons were reported injured by landmines. These incidents were attributed to recent conflicts on the Burmese border.

b. Disappearance

NGOs expressed great concern over reported disappearances in the southern provinces. In many cases the missing persons allegedly disappeared after being questioned by security officials. Estimates of the number of disappeared varied widely but appeared to be more than 50, mostly Muslim men (see section 1.g.). On November 2, on the same occasion when he apologized for the Tak Bai deaths (see section 1.a.), the interim prime minister said he would investigate cases in which the government was suspected in the disappearance of alleged insurgents.

On January 12, four of the five police officers charged in the 2004 robbery and abduction of Muslim attorney and human rights activist, Somchai Neelapaijit, were acquitted due to lack of evidence. The fifth accused, Police Major Ngern Thongsuk, was convicted of coercion for his role in forcing Somchai into a car. Thongsuk was released on bail pending an appeal. There were allegations that witnesses in the case were intimidated. Somchai's wife and some NGO representatives who were monitoring the trial also were threatened. Human rights organizations and legal advocacy groups expressed serious concerns over inadequate and improper investigative procedures, inadequate protection of witnesses, and irregularities in the prosecution's handling of the case. On October 31, CNS head and army commander General Sonthi Boonyaratkalini said

publicly that a close aide of deposed prime minister Thaksin may have been involved in Somchai's disappearance. On November 3, the Attorney General's Office announced that it had received evidence confirming Somchai's death. It also announced that it was preparing to issue arrest warrants for several suspects. Activists involved in the case expressed concern that arrest warrants not be issued until the prosecutors had a case suitable to bring to trial.

Following an investigation into the alleged 2004 abduction by five police officers of Sukip-li Asae in Narathiwat, the Narathiwat Provincial Court determined that the accusation was unfounded and dropped all charges against the officers.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

Prior to the September 19 coup d'etat, the constitution prohibited such practices; however, NGOs and legal organizations continued to report that members of the police occasionally tortured and beat suspects to obtain confessions. On September 19, the military coup leaders revoked the constitution and decreed martial law. Legal experts maintained that the interim constitution incorporates by reference all of the protections contained in the 1997 constitution and specific laws pertaining to prohibition of torture and other cruel, inhuman, or degrading treatment remain in force. During the period of martial law, there were no confirmed reports of torture or other cruel, inhuman or degrading treatment. During the year there were newspaper reports of numerous cases in which citizens accused police of using brutality, threatening false charges, and extorting bribes. Investigations were undertaken in most of the cases, including several in which the accused police officers were suspended pending the results of internal investigations.

On April 17, Sakhon Khamto was detained by police for allegedly kidnapping a newborn infant from Lop Buri Hospital. While in police custody, Sakhon confessed to the kidnapping; however, on April 18, after witnesses failed to positively identify her, Sakhon was released. She immediately retracted her confession and filed a suit against the police claiming that she was beaten and forced to confess. On April 22, an unrelated individual in another part of the country was apprehended with the kidnapped child. Sakhon filed a complaint against the police and sought the assistance of the National Human Rights Commission (NHRC). The NHRC assisted the investigation, but Sakhon was unable to positively identify the officer who abused her.

An investigation was opened into the complaint that in October 2005, a police officer in Tak Province forced his way into a home, threatened and beat an older woman, and tried to rape an 18-year-old Burmese migrant worker. At year's end no arrests had been made.

The five persons represented by lawyer Somchai Neelaphaijit (see section 1.b.) in a 2004 alleged police torture case dropped the charges filed against the police officers involved.

At year's end Police Major Kriangsak Thipchoi, suspended for his part in a 2004 case involving the claim by a married couple that they were beaten and robbed while under detention for 102 days without charge at the Lumpini police station in Bangkok, was being investigated by the National Counter-Corruption Commission (NCCC) for "abusing authority."

Prison and Detention Center Conditions

Prison conditions were poor and overcrowded. The prison population of approximately 149,000 inmates was held in 135 prisons and detention centers designed for 110,000 prisoners. Sleeping accommodations were insufficient. Medical care was inadequate, and communicable diseases were widespread in some prisons. The corrections department employed 17 full-time doctors, 306 full-time nurses, and eight full time dentists. There were also a small number of part-time doctors to supplement the permanent medical staff. Prisoners who are seriously ill may be transferred to provincial or state hospitals.

Prison authorities sometimes used solitary confinement of not more than three months to punish male prisoners who consistently violated prison rules or regulations. They also used heavy leg irons to control prisoners who were deemed escape risks and for prisoners serving life sentences or facing the death penalty.

On September 14, prisoners in the Nakhon Si Thammarat provincial prison rioted and briefly took over the prison. The prisoners demanded that five wardens be removed and investigated for alleged physical abuse and theft of prisoner's personal items. Corrections department authorities agreed to remove and investigate the five. The protest ended peacefully after approximately eight hours.

Approximately 27 percent of the total prison population were pretrial detainees, who were not segregated from the general prison population. Men, women, and children often were held together in police station cells pending indictment. During the year the government opened 12 new juvenile detention centers, and separate facilities for juvenile offenders were available in all of the country's 76 provinces; but in some locations juveniles were detained with adults.

Conditions in Bangkok's Suan Phlu immigration detention center met minimum international standards; however, conditions in nine provincial detention centers remained poor. Immigration detention facilities were administered by the Immigration Police Bureau, which reported to the Office of the Prime Minister and were not subject to many of the regulations that governed the regular prison system. There were credible reports that guards physically abused detainees in some detention centers. Overcrowding and a lack of basic medical care continued to be serious problems.

Access to prisons was not restricted, and the government permitted visits by independent human rights observers and the International Committee of the Red Cross (ICRC).

d. Arbitrary Arrest or Detention

Prior to the September 19 coup d'etat, the constitution prohibited arbitrary arrest and detention; however, government forces occasionally arrested and detained persons arbitrarily. On September 19, the military coup leaders revoked the constitution and decreed martial law. During the period of martial law, four former high-level government officials were detained without formal charges. All four were released on October 1, on the same day that the interim constitution was promulgated. On November 28, the government announced it would lift martial law in 41 of the country's 76 provinces as well as in some districts of the remaining provinces. By year's end, however, the government had not submitted the decree lifting martial law to the palace for the king's signature, required for the decree to come into effect.

The emergency decree covering the southern provinces grants authorities the power to detain suspects for up to 30 days without charge, and make searches and arrests without warrants.

Role of the Police and Security Apparatus

The Royal Thai Police (RTP) is under the direct supervision of the prime minister and a 20-member police commission. The RTP consisted of approximately 213,000 officers in 10 geographic regions. The police commissioner-general is appointed by the prime minister and subject to cabinet and royal approval. The border patrol police have special authority and responsibility in border areas to combat insurgent or separatist movements. Following the September 19 coup d'etat, the military coup leaders declared martial law, which gave the military authority over civilian institutions including the police, regarding the maintenance of public order.

Corruption remained widespread among police officers. Police officials suggested that low pay made them susceptible to bribes. There were reports that police tortured, beat, and otherwise abused detainees and prisoners, generally with impunity. Complaints of police abuse can be filed directly with the superior of the accused police officer, the Office of Inspector General, or the police commissioner-general. The NHRC, the Law Society of Thailand, the NCCC, and the Office of the Prime Minister also accept complaints of police abuse and corruption, as does the Office of the Ombudsmen. When the police department receives a petition, an internal investigation committee first takes up the matter and may temporarily suspend the officer during the investigation. Various administrative penalties exist, and serious cases can be referred to the criminal court. The Police Department reported that as of August, 255 officers were charged with criminal offenses during the year. Of these 97 were charged with murder or attempted murder. Through August the NHRC received 68 complaints of police abuse compared to 132 such complaints in 2005.

Some police officers were involved in facilitating prostitution and trafficking in women and children (see section 5). On August 25, a police lieutenant colonel from Doi Luang police station in Chiang Rai was arrested and charged with trafficking nine Burmese laborers.

Arrest and Detention

In practice the system for issuing arrest warrants was subject to misuse by police officers who provided false evidence to courts to obtain arrest warrants. By law persons must be informed of likely charges against them immediately after arrest and must be allowed to inform someone of their arrest. The law provides for access to counsel for criminal detainees; however, lawyers and human rights groups claimed that local police often ignored this and conducted interrogations without providing access to an attorney. Lawyers working in the southern provinces reported that under the emergency decree they were denied adequate access to detained clients. Foreign prisoners sometimes were pressured to sign confessions without the benefit of a competent translator.

Under normal conditions the law requires the police to submit criminal cases to prosecutors for the filing of court charges within 48 hours of arrest, with extensions of up to three days permitted. Police may seek court permission to hold suspects for additional periods (up to a maximum of six months for the most serious offenses) to conduct investigations. Laws and regulations place offenses for which the maximum penalty is less than three years under the jurisdiction of the district courts, which have different procedures. In these cases, police are required to submit cases to public prosecutors within 72 hours of arrest. Lawyers reported that police rarely brought cases to court within the 48-hour period. According to the Law Society of Thailand, pretrial detention of criminal suspects for up to 60 days was common. As in previous years, several Burmese activists were arrested and held, generally on immigration violation charges.

Under martial law, the military had the authority to detain persons without charge for a maximum of seven days. Following the September 19 coup, the coup leaders detained a number of former government officials and TRT party loyalists. Most of these persons were held for several hours and then released. Four high-ranking former government officials, the former deputy prime minister Chidchai Wannasatht, the former secretary general to the prime minister Prommin Lertsuridej, the former minister in the Prime Minister's Office Newin Chidchob, and the former minister of natural resources and the environment, Yongyuth Tiypairat, were detained on September 19 and released on October 1.

The law provides defendants the right to bail, and the government generally respected this right. However, some human rights groups reported that police frequently did not inform detained suspects of their right to bail or refused to recommend bail after a request for bail was submitted.

The emergency decree in effect in Yala, Narathiwat, and Pattani provinces, plus parts of Songkhla, allowed authorities to arrest and detain suspects for up to 30 days without charge. After the expiration of these 30 days, authorities could begin holding suspects under normal criminal law. Unlike martial law, these detentions required the consent of a court of law. According to the government, 454 persons were arrested under these provisions as of April and 66 cases had gone to court. It is unclear whether any persons were detained in the South under the auspices of martial law alone.

Amnesty

In June, in honor of the 60th anniversary of the king's coronation, the government released approximately 25,000 prisoners. The freed prisoners were nonviolent offenders.

e. Denial of Fair Public Trial

Prior to the September 19 coup, the constitution provided for an independent judiciary. Following the coup, the coup leaders repealed the constitution and issued a decree announcing that all courts with the exception of the Constitutional Court would continue to operate as normal. While the judiciary generally was regarded as independent, it was subject to corruption and

outside influences. According to human rights groups, the lack of progress in several high-profile cases involving alleged abuse by the police and military diminished the public's trust in the justice system and discouraged some victims of human rights abuses (or their families) from seeking justice.

The civilian judicial system has three levels of courts: courts of first instance, courts of appeal, and the Supreme Court. Prior to the coup, there was an independent Constitutional Court. On September 19, the coup leaders dissolved the Constitutional Court and on October 1, established a Constitutional Tribunal composed of justices from the Supreme Administrative Court and the Supreme Court of Justice. A separate military court hears criminal and civil cases pertaining to military personnel as well as those brought during periods of martial law. Islamic (Shari'a) courts hear only civil cases concerning members of the Muslim minority. The law provides for access to courts or administrative bodies to seek redress, and the government generally respected this right.

Trial Procedures

There is no trial by jury. A single judge decides trials for misdemeanors; two or more judges are required for more serious cases. Court procedures enacted in 2004 somewhat alleviated delays; however, a large backlog of cases remained, and trials still could go on for months or even years. While most trials are public, the court may order a closed trial, particularly in cases involving national security, the royal family, children, or sexual abuse. Under the 1997 constitution, justices nominated to the Supreme Administrative Court had to be confirmed by the Senate; under the interim constitution procedures are undefined. All other judges are career civil servants whose appointments are not subject to parliamentary review.

The law provides for the presumption of innocence. In ordinary criminal courts, defendants enjoy a broad range of legal rights, including access to a lawyer of their choosing. A government program provided free legal advice to the poor, but indigent defendants were not provided with counsel at public expense automatically. The court was required to appoint an attorney in cases where the defendant was a minor and in cases where possible punishment was imprisonment. Most free legal aid came from private groups, including the Law Society of Thailand and the Thai Women Lawyers Association. There is no discovery process, so lawyers and defendants do not have access to evidence prior to the trial.

Several NGOs expressed concern over the lack of adequate protection for witnesses, particularly in cases involving alleged wrongdoing by the police. In 2003 the government created the Office of Witness Protection in the Ministry of Justice. The office had limited resources and primarily played a coordinating role. In most cases, actual witness protection was provided by the police. Witnesses, lawyers, and activists involved in cases of alleged police abuse report that protection was inadequate and they were intimidated by the police sent to provide protection.

Although no police or military personnel were prosecuted in relation to the death of 78 Muslim detainees following violent demonstrations in Tak Bai in 2004 (see section 1.g.), the government charged 99 demonstrators with offenses including obstruction of government officials, assembling to breach the peace, and refusing to disperse when ordered. A trial for 57 defendants began in April; the proceedings were delayed by the failure of key prosecution witnesses (including high-ranking police and military officers) to appear in court. The government took no action against these witnesses. On November 3, the government announced that it had dropped all charges against the protesters due to a lack of sufficient evidence.

Political Prisoners and Detainees

There were no reports of political prisoners or detainees.

Civil Judicial Procedures and Remedies

The law provides for access to courts and administrative bodies to seek redress in civil matters, and the government generally respected this right.

f. Arbitrary Interference with Privacy, Family, Home or Correspondence

Prior to the September 19 coup, the constitution prohibited such actions with some exceptions, and the government generally respected these prohibitions in practice. With a few exceptions, including crimes in progress, police are required to obtain a warrant from a court prior to conducting a search. The law provides standardized procedures for issuing warrants. Following the coup, the coup leaders repealed the constitution and decreed martial law. During the period of martial law, the military has the authority to conduct searches without a warrant, although there were no reports that this authority was used.

The Emergency Decree covering the southern provinces also allows authorities to make searches and arrests without warrants. The Law Society of Thailand received multiple complaints from persons in the South claiming that security forces abused this authority; however, the Emergency Decree provides security forces broad immunity from prosecution. At year's end both the Emergency Decree and martial law were in force in the southernmost provinces. The government maintained that both were needed since the Emergency Decree pertained to the police and civilian authorities while martial law pertained to the military.

Reports of police conducting warrantless searches for narcotics in villages in the northern provinces declined. Warrantless searches are permitted in cases in which there is reasonable suspicion and an urgent search is deemed necessary.

Security services monitored persons, including foreign visitors, who espoused extremist or highly controversial views.

In late June National Human Rights Commissioner Vasant Panich reported that he and his family were under intense surveillance by the government. Commissioner Vasant closely monitored cases of human rights violations in the South and worked on the case of missing human rights lawyer Somchai Neelaphaijit (see section 1.b.). Between June 27 and 28, Vasant reported being followed and receiving multiple phone calls from unidentified persons. Vasant claimed that the type of surveillance he was under closely resembled that experienced by Somchai prior to his disappearance in 2004. Concerns that Vasant was being targeted for abduction were widely publicized, and Vasant reported that the surveillance diminished.

During the year Angkhana Neelaphaijit, the wife of Somchai Neelaphaijit, reported receiving numerous threats. Angkhana was a co-plaintiff in the case against police for the abduction of her husband and an outspoken critic of forced disappearances. Angkhana reported regularly receiving threatening telephone calls and being followed. On January 12, she reported that her car was broken into and searched while parked at the criminal court building where she was attending the reading of the verdict against police officers charged with abducting Somchai (see section 1.b.). In early November she reported increased surveillance and threats following statements by the government and the CNS that it had evidence linking a former Thaksin aide to the disappearance of Somchai.

Members of indigenous hill tribes continued to face forced evictions and relocation. Due to lack of proof of citizenship and land ownership, they were forced to move from areas they had cultivated for decades. Conflicts occurred when the land on which they lived was converted to forest conservation areas. Court hearings in the case of the 2004 raid on Palong Pang Daeng Village and the arrest of 48 persons were scheduled to begin in 2007.

In 2004 the government embarked on a "New Model of Forested Villages" project covering approximately 10,866 villages in 70 provinces. Under this project land that tribal villagers had cultivated for more than a hundred years was declared state land, and the indigenous hill tribes became illegal trespassers and faced forcible eviction and other penalties. During the year the project was abandoned due to public discontent and lack of budgetary resources.

A land committee was established under the National Poverty Reduction Program to deal with land disputes in areas affected by the 2004 tsunami. By June, according to the Asian Coalition for Housing Rights, 13 communities had resolved conflicts and received long term land tenure. An additional 76 communities continued efforts to resolve land disputes.

In 2005 the government ordered Burmese refugees with Office of the UN High Commissioner for Refugees (UNHCR) documentation who were working in cities (the "urban Burmese") to relocate to refugee camps on the Burma border. According to the UNHCR, more than 1,800 registered refugees transferred to camps during the year, while 340 failed to report for transfer. Those who remained in cities risked arrest and deportation (see section 2.d.).

g. Use of Excessive Force and Other Abuses in Internal Conflict

The internal conflict in the Muslim-majority southernmost provinces continued throughout the year. An emergency decree in effect for these provinces (Narathiwat, Pattani, Yala, and portions of Songkhla) gave the police and civilian authorities significant powers to restrict certain basic rights and delegated certain internal security powers to the armed forces. Martial law decreed in September after the military coup gives a broader range of power to the military alone. There were reports of abuses by security forces; however, the emergency decree provides security forces broad immunity from prosecution. Insurgents carried out bombings and targeted attacks on an almost daily basis resulting in death and injuries.

The interim government made a number of conciliatory gestures towards southern Malay-Muslims, including repeated statements that it was prepared to talk with separatists and that it intends to lift the emergency decree in January 2007 and apologizes for the Tak Bai killings. Government forces were blamed for the disappearances of more than 50 persons in the South.

In August 2005 unknown attackers shot and killed Satopa Yushoh, an imam in Narathiwat Province. Before dying, Satopa reportedly said he was shot by government soldiers. At year's end there were no developments in this case.

In 2004 elements of the police and military killed more than 100 persons while repelling multiple attacks in Yala, Pattani, and Narathiwat provinces by unnamed separatist Muslim men. Of this total, 32 were killed at Krue Se mosque in Pattani, when security forces stormed the mosque after a nine hour standoff. According to an official independent commission report on the Krue Se mosque incident, the commander on the scene ordered the raid after failed negotiations and the deaths of three soldiers. Civilian authorities in Bangkok, including the deputy prime minister in charge of security, claimed that the raid was conducted without their approval. The commission concluded that force was used when negotiations would have been more appropriate and that the level of force employed was excessive.

In 2004 Ilmin Nehlae reportedly was shot and killed while under control of paramilitary rangers. Five paramilitary soldiers were charged with murder. At year's end the case was being prosecuted in the Yala Provincial Court and all five defendants were free on bail.

Also in 2004, 78 Muslim detainees being transported to an army camp after a violent demonstration in Tak Bai, Narathiwat Province, died from asphyxiation after police and military forces stacked them horizontally onto truck beds for transport. An independent commission reported that three senior security officials, including the Fourth Army commanding general, failed to properly perform their duty and responsibility to monitor their subordinates in transporting detainees in a humane manner. The commission stated that seven persons remained missing. The government directed the Ministry of Defense to conduct a disciplinary investigation of the three senior officers, and it also directed the police to conduct a criminal investigation. Three generals were placed in inactive status, but no police or military personnel were prosecuted for these actions. Although the government paid some compensation to the victims' families, the Law Society of Thailand filed a suit on behalf of the families demanding approximately \$3.39 million (127 million baht) in compensation from various national- and provincial-level agencies including the military and the police. On November 2, the interim prime minister traveled to the South and offered a public apology for abuses at the hands of security officers. On November 7, the government offered the families a total of \$1.12 million (42 million baht) in compensation for dropping the outstanding civil suit.

In February 2005 Prime Minister Thaksin established the 50 member National Reconciliation Commission (NRC) to build "peace and reconciliation" in the South. In April 2005 the NRC released a report on the Tak Bai incident, which reached conclusions similar to those of the independent commission. In April 2005 the NRC released a report on the Krue Se mosque incident. The majority of commission members felt that the military had handled the matter poorly and had not exhausted all possible peaceful solutions before raiding the mosque. Other commissioners felt that it was impossible to tell whether the force had in fact been excessive.

In June the NRC released its final report and recommendations. The NRC determined that the violence in the South stemmed from economic and cultural factors, as well as from "unconstrained abuses of administrative power" and "injustices arising from the existing judicial process and administrative system." The NRC further determined that religion was not the cause of violence but that it was used as a justification by some militants to "legitimize their violent methods." The report offered a wide range of recommendations for the government to address the problems in the South and promote reconciliation including: passage of an act that would create administrative mechanisms to unify government strategy and strengthen civil society; establishing an unarmed community security force composed of civilians, military, and police; engaging in dialogue with militants; and encouraging the government to "deal decisively with state officials against whom abuse-of-power complaints have been made." The Thaksin government acknowledged receipt of the report, but took no actions specifically to address NRC recommendations. On November 1, the interim government reestablished the Southern Border Province Administration Center, which had been dissolved under the Thaksin government, to coordinate government actions in the South and serve as a mechanism through which the local population can file complaints about government misconduct. The interim prime minister also pledged to use the NRC report as the basic guideline for government action in the South.

Separatist violence continued throughout the year. The separatists frequently targeted government and religious representatives, including teachers, monks, as well as district and municipal officials. Among the most notable incidents were: the June 15 coordinated bombing of 40 separate locations including government offices and police stations; the occurrence of over 100 violent incidents across the region on the night and early morning of August 1-2, including a large explosion along a rail line which killed three police officers; and the bombing of 22 bank branches on August 31. Continued violence against teachers and a spate of more than 10 school arsons in early November also forced the closing of 944 schools in the South on November 27 (see section 5). These schools reopened in early December. Among the most notable acts of violence were the assassination of a government primary school teacher while he was teaching class on July 24 and the shooting and burning of another teacher in front of his students on November 24. Bombings and targeted killings, sometimes in public areas, resulted in death and injury on an almost daily basis.

While the insurgents typically targeted "figures of authority," the instances of attacks on civilians increased. On September 16, coordinated explosions in the shopping areas of Hat Yai City in Songkhla Province killed four and injured 59. Mid-November witnessed the shooting deaths of over 30 civilians.

During the year the government began supporting civilian defense volunteers from villages in the South. Volunteers received basic training and some received weapons. Over the course of the year, militants increasingly targeted these civilian volunteers. For example, on August 28, a defense volunteer in Sungai Padi District, Narathiwat, was shot multiple times, his head was nearly severed, and his ears were cut off.

In September 2005 ethnic Malay villagers in Narathiwat Province tortured and killed two marines whom they believed had been involved in the murder of two civilians. A total of 34 persons were initially arrested in connection with the killing, although a number subsequently were released. Prosecutors plan to bring charges against 30 suspects, some of whom remain in police custody. The case has yet to come to trial.

As of September, 24 families from the southern provinces filed official complaints alleging that members of their families (all young men between the ages of 20 and 22) were abducted. At least 23 of these families have accepted monetary compensation from the government of approximately \$2,700 (100,000 baht). The Central Institute of Forensic Science obtained court authority to exhume roughly 400 unidentified bodies from cemeteries in the South, and the government collected DNA samples from members of the families who had filed complaints. Due to budgetary constraints and provincial governors' reluctance to allow remains to be transported across provincial borders to a central forensics facility, the work of identifying the bodies has yet to begin. The NHRC and other human rights organizations expressed confidence that, if this effort moves forward, more families in the South will come forward to report disappearances.

On May 29, Wae-halem Kuwaekama was abducted in Joh Airong District, Narathiwat. According to villagers, soldiers frequently harassed Wae-halem and warned him that his name was on a list of suspected insurgents. Several weeks before his disappearance, Wae-halem and several other villagers were detained for 12 days at the army interrogation center in Bo

Thong District, Pattani. No charges were ever filed. Following his disappearance, Wae halem's family filed a missing persons report with the police. They also filed a complaint with the Independent Commission on Justice and Civil Liberties for the Southern Border Provinces, an independent governmental agency that reports directly to the prime minister. At year's end Wae-halem's whereabouts remained unknown.

At year's end no charges had been filed against police personnel in the case of four Muslim men acquitted of charges of alleged membership in a terrorist organization who claimed that police had beaten them while they were in custody.

In 2004 five suspects in a raid on a Narathiwat military camp alleged that police beat and administered electric shocks to them in order to obtain confessions. The suspects filed a formal complaint with the Ministry of Justice through their lawyer, Somchai Neelapaichjit, who subsequently disappeared and was presumed dead (see section 1.b.). Police opened an internal investigation but the five dropped their complaint.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

Prior to September 19, the constitution, with some exceptions, provided for freedom of speech and of the press. While individuals could criticize the government publicly and privately without official reprisal, there were incidents in which the government limited freedom of speech. The government consistently pressured the media, particularly the broadcast media, to limit dissenting views through threats of libel suits and other means. The government and its allies owned all the major broadcast media, and large shares of the newspaper sector. The government shut down community radio stations and Web sites critical of the ruling party, although these stations were able to reopen. The courts continued to issue rulings that helped protect press freedoms. Following the coup d'etat, the constitutional provisions regarding the rights of freedom of speech and freedom of the press were suspended, and in practice these rights were limited, particularly in the immediate aftermath of the coup. Legal experts opined that the interim constitution incorporates by reference the legal protections contained in the 1997 constitution.

By law the government may restrict freedom of speech and freedom of the press to preserve national security, maintain public order, preserve the rights of others, protect public morals, and prevent criticism of the royal family and insults to Buddhism. The law permits police to close newspapers or printing presses in times of war or national emergency, but only with a court order. The law allows police to restrict or confiscate publications and other materials for disturbing the peace, interfering with public safety, or offending public morals. The government could restrict print or broadcast media by specific legislation in times of crisis and did so through the Emergency Decree imposed in July 2005. The decree empowered the government "to prohibit publication and distribution of news and information that may cause the people to panic or with an intention to distort information." The Emergency Decree also authorized the government to censor newspapers and ban publications, although these powers were not used.

On September 20, the military coup leaders ordered the Ministry of Information and Communication Technology (ICT) to "censor, prevent, block, and destroy dissemination" of information carried on the telecommunications networks that contained "articles, messages, verbal speech, or any other discourse" that could undermine the coup leaders. On the same day, the coup leaders issued an announcement that sought "cooperation from the mass media...(in) joint efforts to disseminate factual and constructive news and information." During the remainder of the year, print and broadcast media nonetheless reported news critical of the interim government and CNS and continued to report the statements and activities of the former prime minister.

Prior to September 19, print media criticism of political parties, public figures, and the government was common and vigorous. Journalists generally were free to comment on government activities without fear of official reprisal; however, the print media routinely practiced self-censorship, particularly with regard to the monarchy and national security. The

government and its allies exerted strong pressure on the print media. According to NGOs, including the Thai Journalists Association (TJA), the government controlled the media through direct ownership, the threat of withdrawing financial support and advertisements, constraints on the flow of information, and pressure on journalists and activists.

Libel suits were used to encourage self-censorship. In October 2005 the prime minister filed a series of six civil and criminal libel suits against the Phujatkarn newspaper; its owner, Sondhi Limthongkul, an outspoken critic of the government; and his associates. The lawsuits were withdrawn in December 2005, following disapproving remarks by the king.

In 2004 the Shin Corporation, owned by the then prime minister's family, filed a libel suit against media activist Supinya Kangnarong. On March 15, the Criminal Court acquitted Supinya, and the Shin Corporation withdrew a civil case against her on May 11.

Some of the country's largest advertisers were state owned and newspaper editors reported that these companies threatened to withdraw lucrative advertising contracts if a newspaper did not soften its antigovernment editorial tone.

Journalists also expressed concern about government public relations tools presented to the public as neutral media outlets. On September 4, the TJA issued a statement denouncing "phony" print and Internet media, which failed to identify themselves as government controlled. The TJA claimed they were designed to discredit the conventional media.

Prior to the September 19th coup, the government and its allies owned large stakes in many prominent newspapers.

State entities and government allies controlled and owned almost all radio and television stations. The government owned and controlled 524 officially registered "regular" AM and FM stations, while the military and police services retained ownership of 230 radio stations, ostensibly for national security purposes. Other owners of national broadcast media included the government's Public Relations Department (PRD). Almost all of the stations were leased to commercial companies.

Radio stations must renew their licenses every year, and radio signals were broadcast via government transmitters. Stations are required by law to broadcast 30 minute government-produced newscasts twice daily. The country's estimated 2,000 to 3,000 community radio stations operated under somewhat different regulations. Because broadcast regulations restrict radio frequencies to government entities, these stations technically operated outside the law, but most were allowed to continue broadcasting provided they registered with the government. In the last two years, the government closed 17 community radio stations including 92.25, a station critical of the government, for violating rules on antenna height or signal strength. During the year, 92.25 was allowed to operate with a shorter antenna.

Until January Prime Minister Thaksin's family controlled the Shin Corporation which owned iTV, the country's only independent nonstate-owned broadcast television station.

The appointment of a National Broadcast Commission tasked with reallocating all broadcast frequencies and regulating the broadcast media remained in limbo. During the year the selection committee again selected 14 individuals, and the courts again rejected the nominees.

Self-censorship in the broadcast media was evident even before the coup. Producers and reporters who criticized the government faced political or economic repercussions, such as reassignment to other duties in a publication, termination of a broadcast program, loss of advertising, politically motivated libel suits, or removal from a role in the production or presentation of a broadcast program. There were credible reports that the political opposition had difficulty getting broadcast time due to fears of offending the government. On August 20, broadcast journalists at a TJA seminar admitted they employed self-censorship to ensure they remained on air and avoided government harassment.

In the days following the September 19 coup d'etat, broadcast media, particularly television, was closely monitored. On the night of the coup, armed soldiers deployed to television and radio stations throughout Bangkok. All regular television programming ceased, and all broadcast stations aired programming from the army-owned and operated Channel 5. By mid-morning on September 20 these stations had returned to "regular" programming, mostly light entertainment and informational shows. Newscasts continued to air at their regularly scheduled times, and reports included factual, although positively slanted, news of the coup. Soldiers in the stations reportedly requested news producers not to air negative reports on the coup. Armed troops remained deployed at the stations for several weeks. The privately operated United Broadcasting Corporation (UBC) cable network blocked CNN and BBC on the night of the coup. For the next few weeks, UBC continued to occasionally block the signal when those networks aired images of former prime minister Thaksin.

The ICT also banned radio programs with call-in formats and asked television programs not to broadcast text-messages from viewers on screen. Programming gradually returned to normal over the subsequent weeks.

Soon after the coup, the local branches of the PRD asked hundreds of community radio stations in the North and Northeast to cease broadcasting. An army representative explained that the stations were too difficult to monitor to ensure that they were not broadcasting pro-Thaksin information. Within two weeks, most of these stations had permission to resume operating.

At year's end there was no resolution of the following cases of journalists killed or injured in 2005: the February killing of Phruttiphong Marohabut, a cameraman for iTV, in Pattani Province; the February killing of Kiat Saetang, editor of the Hat Yai Post, in Pattani Province; the June shooting of Manop Ratanajaroongporn, in Phang Nga Province; and the November killing of Santi Lammaneenil, owner of the Pattaya Post and freelance reporter. All were believed to have been targeted for their politically sensitive reporting.

On February 6, the Special Police Branch wrote to all print media asking them not to reprint or publish excerpts from the book *The King Never Smiles*, written by Paul Handley and published overseas. Imports were also banned.

Internet Freedom

Individuals and groups could generally engage in the peaceful expression of views via the Internet, including by electronic mail; however, there were some limitations. The ICT cyber inspection team is responsible for censorship. Prior to the September 19 coup, most banned Web sites featured pornography or offered illegal products. The government distributed a blacklist of approximately 4,000 Web sites, both domestic and foreign, to government and private Internet service providers (ISPs). Compliance by the ISPs in blocking routine access to these Web sites was universal.

Following the coup many popular Web sites banned political topics in their chat rooms. Anticoup political messages and blogs continued on other Web sites. ICT blocked two local Web sites explicitly critical of the coup. BBC reported that parts of its Web site, which featured commentary on the possible role of the king, also were blocked.

In response to persistent violence in the South, the government continued to block Web sites viewed as threatening to national security. In 2004 authorities blocked access to the Pattani United Liberation Organization Web site, which advocated Muslim separatist ideas and violence. Internet providers enforced the ban, informing their customers that they had blocked access to the Web site.

Academic Freedom and Cultural Events

There were no government restrictions on academic freedom, either before or after the coup.

Cultural events may be censored, usually for reasons of public decency. Under the 1930 Film Act, theater owners and broadcasters must submit films they plan to show to the film censorship board for review. The board may ban a film if offending portions are not deleted. Reasons for censoring films include violating moral or cultural norms and disturbing the

public order or national security. Theater owners and broadcasters frequently censored films themselves before submitting them to the board. According to the board, no films have been banned since 2003.

b. Freedom of Peaceful Assembly and Association

Freedom of Assembly

Prior to September 19, the constitution provided for freedom of assembly and association, and the government generally respected these rights in practice. Following the September 19 coup d'etat, the coup leaders repealed the constitution and decreed martial law. On September 20, the coup leaders prohibited gatherings of more than five persons for political purposes. On September 21, the coup leaders issued a decree prohibiting all political gatherings or political activities by political parties. A similar decree on September 24 prohibited all political gatherings or activities of local and provincial government officials. Although there were no credible reports of reprisals by the authorities for violation of these decrees, many NGOs and civil liberty advocacy groups expressed concern that they inhibited individuals from exercising their rights of assembly and association. On November 9, the National Legislative Assembly voted to lift the decree prohibiting gatherings of more than five persons for political purposes. The restriction was formally lifted on December 27.

The Emergency Decree for the southern provinces allows the government to limit freedom of assembly, but this provision was not used during the year.

Between January and April, the People's Alliance for Democracy (PAD--a coalition of NGOs) staged a series of massive antigovernment demonstrations in Bangkok and other cities around the country. The demonstrations, some drawing as many as 100,000 to 200,000 participants, were peaceful. Although demonstrators in Bangkok did not always possess the proper permits for some of the actions they staged, the authorities consistently allowed demonstrations to proceed without incident. On April 23, PAD was forced to cancel a seminar in Udon Thani after a pro-Thaksin group of several hundred people began pelting PAD organizers with stones and other objects.

On August 19, a small group of protesters shouting anti-Thaksin slogans at an event attended by Prime Minister Thaksin in a Bangkok shopping mall were restrained and some were reportedly beaten by plainclothes security guards. On August 21, a small group of protesters shouting anti-Thaksin slogans outside another shopping mall were beaten by two men while police officers stood by watching. Television cameras filming the demonstration captured the attack and police inaction. Three demonstrators were injured in the assault. The two men later surrendered to police and were charged with assault.

Freedom of Association

Both before and after the September 19 coup, the laws provided for and the authorities generally respected the right to freedom of association. On September 21, the coup leaders announced a suspension on the registration and formation of new political parties.

c. Freedom of Religion

Prior to the September 19 coup d'etat, the constitution provided for freedom of religion, and the government generally respected this right in practice; however, it restricted the activities of some groups. The constitution required that the monarch be a Buddhist. The state religion in effect is Theravada Buddhism; however, it is not designated as such. Following the September 19 coup d'etat, there were no credible reports of additional restrictions placed on religious freedom.

The government played an active role in religious affairs. Under the Religious Organizations Act, a new religion can be registered if a national census shows that it has at least 5,000 adherents, represents a recognizably unique theology, and is not politically active. To register, a religious organization also is required to be accepted into one of the five officially recognized ecclesiastical groups: Buddhist, Muslim, Catholic (which includes four Protestant sub-groups), Brahmin-Hindu,

and Sikh. Since 1984 the government has not recognized any new religious groups. Government registration conferred some benefits, including access to state subsidies, tax-exempt status, and preferential allocation of resident visas for organization officials. Unregistered religious organizations did not receive these benefits but operated freely in practice.

The repealed 1997 constitution required the government "to patronize and protect Buddhism and other religions." The government subsidized activities of the three largest religious communities (Buddhist, Islamic, and Christian).

The 1962 Sangha Act specifically prohibits the defamation or insult of Buddhism and the Buddhist clergy. The penal code prohibits the insult or disturbance of religious places or services of all of the recognized religions in the country. Followers of the Santi Asoke sect of Buddhism were unable to legally refer to themselves as Buddhists because of theological disagreements with the sangha council, but they were able to practice their faith without restriction.

The government stationed troops to protect religious practitioners and structures in communities where the potential for violence existed and provided armed escort for Buddhist monks where necessary.

Religious instruction is required in public schools at both the primary and secondary education levels.

In the past, traditional Islamic pondok schools were not required to register with the government and had no government oversight or funding. Following the outbreak of violence in the southern provinces, registration with the government was made mandatory. By July the government had registered 372 pondok schools in the provinces of Yala, Pattani, and Narathiwat. Observers estimated that as many as 1,000 pondok schools operated in the South.

Muslims, who represented between 5 and 10 percent of the population nationwide and constituted the majority in four of the five southernmost provinces, experienced some economic discrimination. The government attempted to address the problem by maintaining longstanding policies designed to integrate Muslim communities into society through developmental efforts and expanded educational opportunities. However, these efforts were often resisted amid charges of forced assimilation. Muslims outside of the southern provinces were much better integrated into society.

Government officials reportedly continued to monitor Falun Gong members. The Falun Gong's long-pending application for official registration was denied in October 2005. The Falun Gong group's application to the police to print and distribute a weekly magazine was still pending at year's end. In December 2005 eight Falun Gong practitioners were arrested following a week of peaceful protests outside the Chinese embassy. Three were released later that month, and the remaining five were released in January.

Societal Abuses and Discrimination

Violence committed by suspected Islamic militants in the southern provinces of Narathiwat, Pattani, Songkhla, and Yala affected the ability of some Buddhists in this predominantly Muslim region to undertake the full range of their traditional religious practices. Buddhist monks and temples have been targeted for attack. A number of monks reported that they no longer were able to travel freely through southern communities. Monks also claimed that, due to fear of being targeted by militants, laypersons sometimes declined to assist them in their daily activities. During the year one Buddhist layperson and one Muslim layperson were beheaded, compared with nine in 2005.

Many persons presumed that the killing of Buddhist civilians was intended to increase interfaith tensions. While the level of tension between local Muslim and Buddhist communities was heightened, it did not result in open communal conflict (see section 5). During the year a number of Buddhist families were displaced and sought shelter in Buddhist temples (see section 2.d.).

A group of Hmong refugees sheltered in Thailand complained of desecration of Hmong graves. According to wat authorities, the Wat Tham Krabok monastery provided a portion of its private land to the refugees for use as a cemetery. The cemetery expanded beyond the land allocated and decomposing remains reportedly contaminated ground water. The monastery

contracted with a Buddhist organization to disinter the remains outside the allocated area and relocate them to a more suitable site, pending cremation. Approximately 800 bodies were removed in the fall of 2005.

The indigenous Jewish community is small, and there were no reports of anti-Semitic incidents.

For a more detailed discussion, see the [2006 International Religious Freedom Report \(//2009-2017.state.gov/j/drl/rls/irf/2006/\)](https://2009-2017.state.gov/j/drl/rls/irf/2006/).

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

Prior to the September 19 coup d'etat, the constitution provided for the right of citizens to change their residence or workplace, and the authorities generally respected this right in practice; however, there were some exceptions. Following the September 19 coup, there were no credible reports of additional restrictions placed on freedom of movement. Longstanding written restrictions remained in effect on the travel and domicile of certain Vietnamese and Chinese resident aliens. A large number of these persons and their descendants received full citizenship in recent years (see section 5).

Other longtime noncitizen residents, including hundreds of thousands of ethnic Shan and tens of thousands of members of other tribes, were required to seek permission from local authorities or the army for foreign and domestic travel. Registered resident aliens moved freely within the country.

Members of hill tribes who have not been granted citizenship were issued color coded identity cards which reflect restrictions on their freedom of movement as well as other restrictions. The cards often prohibit travel outside their province or district without permission from the district head. Offenders are subject to heavy fines and jail terms. Persons with no card may not travel at all (see section 5).

Migrant workers may only work in certain provinces. The government continued to offer illegal migrants the opportunity to be legally registered. Registration must be renewed each year. As of August, more than 746,000 migrants had registered, three fourths of them from Burma. In August the government announced an agreement with the government of Burma to allow Burmese migrants working in Thailand the opportunity to apply for temporary passports at select Burmese border crossings. Burmese possessing these temporary passports would be able to legally re enter Thailand and work. The travel document would not be valid for travel to third countries. Similar agreements are in place with the governments of Laos and Cambodia. On November 7, the government of Burma announced the opening of three new offices to issue these temporary passports in the Burmese border towns of Myawaddy, Kawthong, and Tachilek.

The law prohibits forced exile, and the government did not practice it. Following the September 19 coup d'etat, there were no reports of forced exile. Former prime minister Thaksin remained outside of the country. The CNS stated that he should not consider returning to the country before martial law has been lifted.

Internally Displaced Persons

In November insurgent violence caused approximately 55 Buddhist families from two villages in Yala Province to seek shelter in a Buddhist temple. At year's end they remained displaced.

Protection of Refugees

The country is not a signatory to the 1951 UN Convention relating to the Status of Refugees or its 1967 Protocol and the law does not provide for granting asylum or refugee status; however, the government generally cooperated with the UNHCR and other humanitarian organizations in assisting refugees. Late in the year cooperation with UNHCR deteriorated as the authorities detained increasing numbers of Hmong, North Korean, and Burmese Rohingya asylum seekers and refugees.

During the year asylum seekers of many nationalities, the large majority of whom were Burmese, received temporary protection. The government continued to allow the UNHCR to monitor the conditions of the approximately 150,000 Burmese refugees living in nine camps along the Burmese border but prohibited the UNHCR from maintaining a permanent presence in the border camps. NGOs provided basic needs assistance in the camps.

In 2005 provincial admission boards (PAB) were established, with UNHCR participation, to replace UNHCR in determining refugee status for Burmese nationals. UNHCR continued its refugee status determination process for all other nationalities. During the year the PABs formally admitted more than 26,000 refugees into camps. Many of these previously lived in the camps without formal permission. The government agreed to permit third country resettlement of camp refugees, and there was some resettlement from the camps during the year.

The government allowed NGOs to provide food, medical services, housing, and other services to Burmese refugees who may have valid refugee claims but who reside outside the camps. Government officials periodically arrested Burmese outside designated camps as illegal aliens. Those arrested generally were taken to the border and released without being turned over to Burmese authorities.

In March 2005 the authorities ordered urban Burmese refugees (see section 1.f.) to relocate to refugee camps near the border or face arrest and deportation and loss of their chance for third country resettlement for being in the country illegally. According to the UNHCR, more than 1,800 transferred to camps during the year, while 340 did not. NGOs protested that difficult conditions in the camps would be exacerbated by the influx of new refugees and that Burmese journalists and activists from urban areas would be unable to continue their work. Many in this group departed for resettlement in third countries.

In addition to the urban Burmese refugees, UNHCR reported that it registered more than 11,000 additional Burmese asylum seekers outside of camp settings. Under government policy, they must first transfer to holding centers in the camps before the PABs will consider their cases. Some have transferred to the camps, but very few have been screened by the PABs.

During the year the government permitted NGOs to expand occupational training and income generation programs in the camps.

The government adopted a tougher approach to resolve the situation of the approximately 7,500 Hmong who congregated in Huay Nam Khao, Phetchabun Province, some of whom appeared to have valid refugee claims. The government reserved the right to repatriate the group to Laos and has not granted the UNHCR permission to interview them to determine their refugee status out of concern that allowing status determination would attract more Hmong from Laos to enter the country to seek asylum. In November 2005 27 Hmong from this group, including 26 minors, were picked up by local authorities and irregularly deported to Laos. At year's end the Lao government continued to deny knowledge of the whereabouts of these individuals.

In June approximately 230 Hmong fled Laos attempting to join the Huay Nam Khao group. They were arrested by Thai authorities and placed in separate detention facilities spread out across Phetchabun Province. On August 15, authorities transported 31 members of this group to a remote area of the Laos border and reportedly left them on the border with several days supply of food. On November 15, following formal Lao government agreement to repatriate Hmong, a group of 53 Hmong were deported to Laos. None had received access to UNHCR or other screening of their asylum claims. Their status and whereabouts were unclear. On November 17, a group of 152 Hmong, many with UNHCR refugee status, was arrested in Bangkok and taken to the border city of Nong Khai. There they faced the risk of deportation, or refoulement for those with UNHCR refugee status. In response to pleas on behalf of the group by UNHCR, NGOs, and foreign governments the return of this group was temporarily halted.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

Prior to September 19, the constitution provided citizens the right to change their government peacefully, and citizens exercised this right in practice through periodic free and fair elections held on the basis of universal suffrage. On September 19, after seizing control of the government in a military coup d'etat, the ruling coup leaders repealed the constitution, abolished both houses of the parliament, and deposed the prime minister and his cabinet. National elections scheduled for October 15 were cancelled. The interim constitution, promulgated on October 1, sets the framework for the adoption of a new constitution with elections to follow.

Elections and Political Participation

In February 2005 national elections, then prime minister Thaksin Shinawatra's TRT Party won an absolute majority of 377 seats in the 500-seat lower house of parliament and formed a government without entering into a coalition. On February 24, amid massive antigovernment street demonstrations and growing calls for his resignation, Thaksin dissolved the lower house of parliament and called for elections to be held on April 2. The three main opposition political parties boycotted the snap elections.

The April 2 election and subsequent by-elections did not result in a full lower house. Election laws required candidates running unopposed to garner the votes of at least 20 percent of the electoral base in their constituency. TRT candidates running unopposed in at least 13 constituencies were unable to reach the 20 percent threshold. As such, the lower house was unable to convene an opening session or elect a new prime minister.

On May 8, the Constitutional Court ruled that the April 2 election was unconstitutional. The court also ruled that the results of that election were null and void and that new elections must be held for the lower house. The decisions were based on the court's finding that the election was set too soon after parliament's dissolution and that the positioning of the voting booths at the polling stations violated voter confidentiality.

In the wake of the court ruling, one election commissioner resigned, but three remained in office. On July 25, the courts convicted the remaining three electoral commissioners on charges that they violated election laws in ways that favored the ruling TRT Party.

Meanwhile, the national election process for the 200-seat upper house of parliament (Senate) held on April 19 generally was viewed as free and fair; however, it was marred by widespread reports of vote-buying, a recurrent problem, especially in the northeast of the country. A spate of election-day attacks in Narathiwat and Yala provinces targeted several polling stations and vehicles transporting ballots. Four persons were killed and over 20 were injured. Senators-elect were unable to assume their posts because only 180 were confirmed by the election commission before it ceased functioning.

On October 1, following the September 19 coup d'etat, the ruling coup leaders promulgated an interim constitution and appointed retired general Surayud Chulanot to serve as prime minister of an interim government. The interim constitution did not provide citizens the right to change their government peacefully; however, it did establish a process by which a new constitution would be drafted and submitted to a public referendum.

Prior to its dissolution in February, there were 52 women in the 500-member House of Representatives. There were 21 women in the outgoing 200-member Senate. Prior to the September 19 coup d'etat there was one woman in the 38-member caretaker cabinet. Women hold two cabinet positions in the interim government: minister attached to the Prime Minister's Office and minister of culture. Although half of civil service employees were women, women held only 15 percent of senior positions.

Few members of ethnic minorities held positions of authority in national politics. Muslims from the South held significant elected positions, although they continued to be underrepresented in appointed local and provincial government positions. There were eight Muslim and two Christian outgoing senators and 24 Muslim and six Christian members of the House of Representatives prior to its dissolution. One MP was a hill tribesman. General Sonthi Boonyaratkalin, chairman of the Council for National Security, is a Muslim, as is Interior Minister Aree Wongarya.

From 1992 through 2005, there were six national multiparty elections, which transferred power to successive governments through peaceful, democratic processes. Voting was compulsory.

Government Corruption and Transparency

Corruption in the executive branch was widely acknowledged by the public and was cited by the coup makers as one of the principal justifications for the September 19 coup d'etat. Prior to the September 19 coup, the NCCC was moribund as new commissioners had not been appointed to replace the commissioners who resigned in May 2005. The commission continued administrative functions, but investigations could not be concluded until new commissioners were appointed.

Anticorruption efforts under the Thaksin government were also hampered by a 2004 court ruling against the procedures used in appointing the auditor-general, Khunying Jaruvan Maintaka. Jaruvan was out of office from July 2004 through February, when she was able to return to her position as auditor-general after the king refused to approve the appointment of a new candidate and efforts to replace Jaruvan were abandoned.

Following the September 19 coup d'etat, the coup leaders took several actions aimed at enhancing efforts to investigate corruption under the ousted government. On September 20, the coup leaders placed full authority to audit all public agencies under auditor-general Jaruvan by dissolving both the State Audit Commission and the supervisory board of the Office of the Auditor-General. On September 22, the coup leaders appointed nine new NCCC commissioners. On September 24, the coup leaders established the Assets Examination Committee (AEC) that was specifically charged with investigating cases of alleged corruption in the Thaksin government. The AEC included Auditor-General Jaruvan, the secretary general of the NCCC, and several other prominent figures.

There were a number of high-profile allegations of corruption during the year. The controversial \$1.9 billion sale of Shin Corporation, which was owned by Prime Minister Thaksin's family, was under investigation for the allegedly illegal foreign ownership structure arranged to facilitate the sale. Investigations also continued into various allegations of corruption involving construction and procurement at Bangkok's new international airport.

Prior to the September 19 coup d'etat, the constitution provided access to public information. If a government agency denied a citizen's request for information, a petition could be made to the official information commission. In 2005 more than 90 percent of the petitions were approved. Requests for public information could be denied for reasons of national security, law enforcement, and public safety. Following the September 19 coup, laws providing access to public information remained in force. There were no reports of government agencies denying citizens' requests for information.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

A wide variety of domestic and international human rights organizations generally operated without government restriction, investigating and publishing their findings on human rights cases.

However, NGOs that dealt with sensitive political issues, such as the Burmese democracy movement and opposition to government-sponsored development projects, faced periodic harassment. Human rights workers focusing on disappearances and the violence in southern Thailand were particularly vulnerable to government harassment. Very few NGOs were accorded tax-exempt status, which sometimes hampered the ability of domestic human rights organizations to secure adequate funding.

Angkhana Neelaphajit, the wife of Somchai Neelaphajit, reported regularly receiving threatening phone calls and being followed (see sections 1.b. and 1.f.).

In late June National Human Rights Commissioner Vasant Panich reported that he and his family were under surveillance by government agents (see section 1.f.).

On September 15, a human rights advocate who worked as a researcher for the NRC and other human rights organizations, was stopped while driving on the Pattani-Narathiwat highway and searched by two armed men who refused to present identification. The human rights advocate claimed the men accused him of assisting separatist insurgents by investigating and exposing human rights abuses by government officials. On September 17, he fled his home in Pattani after receiving scores of threatening phone calls and being followed for several days by unmarked cars. In September 2005 this same individual was shot and injured while riding his motorcycle in Pattani Province. He reported he was targeted because of his human rights activities.

On October 20, Muhammad Dunai Tanyeen, a human rights defender in Narathiwat was shot and killed near his home (see section 1.a.). Muhammad Dunai worked to assist villagers affected by the violence in the South and had actively assisted some of the 58 defendants in the Tak Bai case (see sections 1.e. and 1.g.).

Some members of the domestic NGO Assembly of the Poor reported that the government threatened to file charges of treason and otherwise intimidated them because of their activities. The threat of arrest hindered their work.

Government officials met and cooperated with visitors from the ICRC and the Office of the UN High Commissioner for Human Rights throughout the year. In June the foreign minister attended the 33rd Session of the Organization of the Islamic Conference (OIC) in Baku, Azerbaijan, as an observer. At that meeting, the OIC resolved to continue efforts with the government to seek just solutions to the problems of Muslims in southern Thailand.

In 2004 the UN Commission on Human Rights special rapporteur on extrajudicial, summary or arbitrary killings requested permission to visit the country following the October incident in Tak Bai (see section 1.g.). Although the country provided a detailed response to the inquiry by the special rapporteur, the visit did not take place. In August and November 2005, the special rapporteur again requested permission to visit, but the visit did not take place.

The NHRC was active during the year. As an independent government entity, it submitted an annual evaluation of the human rights situation, proposed policies and recommendations for amending laws to the National Assembly, promoted measures to educate citizens on human rights, and investigated human rights abuses. Modest staffing and resources, as well as the lack of power to prosecute or to punish violators, hampered the NHRC's ability to carry out its mandate. According to NHRC commissioners, the government rarely responded to NHRC proposals or recommendations. In a May 2005 report on the Tak Bai incident, the NHRC concluded that officials had violated the human rights of the Tak Bai detainees and called on the government to compensate victims and their families and to review its southern policy. The NHRC publicly appealed to the prime minister to do away with the emergency decree.

In February 2005 the prime minister established the 50-member National Reconciliation Commission to build "peace and reconciliation" in the South. In June the NRC released its final report and recommendations. The government acknowledged receipt of the report, but did not take any actions specifically to address NRC recommendations. The interim prime minister pledged to use the NRC report as the basic guideline for government action in the South (see section 1.g.).

Section 5 Discrimination, Societal Abuses, and Trafficking in Persons

Prior to the September 19 coup d'etat, the constitution provided for equal treatment without respect to race, gender, religion, disability, language, or social status; however, in practice, some discrimination existed, and government enforcement of equal protection statutes was uneven. Following the September 19 coup d'etat, specific laws pertaining to the provision of equal treatment without respect to race, gender, religion, disability, language, or social status were unaffected and there were no credible reports of increased discrimination based on these factors. The interim constitution contained provisions that provided for basic human rights, although equal rights and protections against societal abuses were not specifically addressed.

Women

Domestic violence against women was a significant problem, and there were no specific laws addressing the problem. A few domestic violence crimes were prosecuted under provisions for assault or violence against a person. Domestic violence often went unreported, and the police often were reluctant to pursue reports of domestic violence. Reliable statistics on rates of domestic violence were difficult to obtain, but in November 2005 the public health minister noted that the number of reported cases of abuse had increased from five per day in 2002 to 28 per day in 2005. Approximately half of these cases involved sexual abuse. It was unclear whether the increase reflected an increase in violence or an increased public awareness of the problem and an increased willingness on the part of battered women to report it to authorities. Also in November 2005 the World Health Organization released findings of a study that showed 41 percent of women in Bangkok and 47 percent of women in rural areas had experienced physical or sexual abuse by an intimate partner. NGO supported programs included emergency hot lines, temporary shelters, counseling services, and a television program to increase awareness of domestic violence, HIV/AIDS, and other issues involving women. The government's "one-stop" crisis centers, located in state-run hospitals, continued to care for abused women and children but faced budget difficulties.

Rape is illegal. Through November the police reported 5,060 rape cases nationwide, including five cases where the victim was killed. Suspects were arrested in 2,047 of these cases, including four of the cases resulting in the victim's death. There were 4,693 reported rapes in 2005. There are no provisions for prosecuting spousal rape. According to academics and women's rights activists, rapes and domestic assaults were underreported, in part because law enforcement agencies were perceived to be incapable of bringing perpetrators to justice. Police sought to change this perception and encouraged women to report sexual crimes through the use of female police officers in metropolitan Bangkok and in three other provinces. The law specifies a range of penalties for rape or forcible sexual assault, depending on the age of the victim, the degree of assault, and the physical and mental condition of the victim after the assault. The minimum penalty is from four to 20 years' imprisonment and a fine of \$200 to \$1,000 (8,000 to 40,000 baht). If firearms or explosives are used, or if it is a gang rape, the penalty increases to 15 to 20 years' imprisonment and a fine of \$750 to \$1,000 (30,000 to 40,000 baht). Life imprisonment or execution is possible for cases in which the victim is injured or killed. A sentence of four to 20 years' imprisonment and a fine ranging from \$200 to \$1,000 (8,000 to 40,000 baht) is imposed for statutory rape of a child less than 15 years of age. If the victim is less than 13, the jail term ranges from seven years' to life imprisonment. The law also provides that any individual convicted for a second time for the same criminal offense within two years is liable to increased penalties for recidivism. Victims of sexual abuse were eligible to receive state financial aid of up to \$750 (30,000 baht).

Prostitution is illegal, although it is practiced openly throughout the country. Local officials with commercial interest often protected prostitution (see sections 1.d. and 5, Trafficking). Trafficking in women and children for prostitution was a serious problem (see section 5, Trafficking). Government and NGO estimates of the number of women and children engaged in prostitution varied widely. Ministry of Social Development and Human Security figures estimated there were 57,500 prostitutes working in the country. However, NGOs reported between 200,000 and 300,000 prostitutes. The illegal nature of the work and the high incidence of part-time prostitutes made precise numbers difficult to assess. In 2000 the Commission on Women's Affairs estimated that approximately 20 percent of prostitutes were children. There were reports that women were forced into prostitution in border areas, but the number of such cases was difficult to determine. Most prostitutes were not kept under physical constraint, but a large number worked under debt bondage (see section 5, Trafficking). The law forbids child prostitution and subjects customers who patronize child prostitutes to criminal sanctions (see section 5, Children). NGOs and government agencies provided shelter, rehabilitation, and reintegration programs for children and women involved in the sex industry.

Sex tourism was a problem (see section 5, Trafficking).

The law makes sexual harassment illegal but covers only persons working in the formal sector. NGOs claimed that the legal definition of harassment was vague and prosecution of harassment claims difficult. Between July 2005 and August 2006, the civil service commission's sexual harassment and bullying hot line recorded approximately 250 cases. All complaints were investigated, but prosecution or disciplinary action was rarely sought because most callers only wanted to seek consultations. Some complaints may have been settled out of court.

The law provides for the equality of all citizens; however, some inequalities in the law remained. For example, a man may sue for divorce on the grounds that his wife committed adultery, but a woman faces the additional legal burden of proving that her husband publicly has acknowledged another woman as his wife.

Women had equal access to higher education, and more than half of university graduates were women. However, police and military academies (except for the nursing academy) did not accept female students, although a significant number of instructors at the military academies were women. According to the national statistics office, in 2005, women constituted 46 percent of the labor force and held an increasing share of professional positions. Women composed 58 percent of professional workers and 51 percent of technical workers but only 29 percent of administrators and managers. Women were able to own and manage businesses freely. Government regulations require employers to pay equal wages and benefits for equal work, regardless of gender. Nonetheless, discrimination in hiring was common, and women were concentrated in lower-paying jobs. In practice women received lower pay for equal work in virtually all sectors of the economy.

The National Human Rights Commission Act specifies that at least one-third of the members of the NHRC be women; during the year, five of the 11 commissioners were women. The Women and Constitution Network, a league of more than 50 women's organizations, advocated legal reforms to address inequities in the treatment of women. The organization actively campaigned for gender-equality clauses in legislation and for strengthening a proposed law on domestic violence.

Children

Prior to the September 19 coup d'etat, the constitution provided children equal protection under the law. Following the September 19 coup d'etat, the constitution was repealed but laws pertaining to equal protection for children were unaffected. Education is compulsory for nine years, and school tuition is free for 12 years. In general girls and boys attended primary and secondary schools in equal numbers. An estimated 96 percent of children completed grade six, 80 percent completed grade nine, and 79 percent completed grade 12. Girls are prohibited by religious practice from enrolling in religious schools restricted to Buddhist monks or novices. During the year violence in the southern provinces, and particularly violence aimed at public school teachers, sporadically forced the temporary closure of public schools and disrupted the educational process in those areas (see section 1. g.).

Children were tried in the same courts as adults and detained with adults in some regions of the country. There were 94 Juvenile Observation and Protection Centers for underage offenders, with at least one such facility located in each of the country's 76 provinces.

The law provides for the protection of children from abuse, and laws on rape and abandonment carry harsher penalties if the victim is a child. A nationwide, government-sponsored poll of high school students found that 5 percent of boys and 3 percent of girls had encountered sexual harassment. During the year police were reluctant to investigate abuse cases, and rules of evidence made prosecution of child abuse difficult. The law is designed to protect witnesses, victims, and offenders under the age of 18, and procedures with a judge's consent allow children to testify on videotape in private surroundings in the presence of a psychologist, psychiatrist, or other social worker. However, many judges declined to use videotaped testimony, citing technical problems and the inability to question accusers and defendants directly in court. Persons charged with pedophilia are charged under appropriate age of consent and prostitution laws. Victims' testimony is handled under the provisions of the Child Friendly Procedure Act.

Trafficking in children, including for commercial sexual exploitation, remained a serious problem (see section 5, Trafficking). Pedophilia continued, both by citizens and by foreign sex tourists. The government, university researchers, and NGOs estimated that there were as many as 30,000 to 40,000 prostitutes less than 18 years of age, not including foreign migrants. The Prostitution Prevention and Suppression Act makes child prostitution illegal and provides for criminal punishment for those who use prostitutes under age 18. Parents who allow a child to enter into prostitution also are punishable. During the year there were a few arrests and no prosecutions of parents who allowed a child to enter into prostitution. Custom and tradition made it rare for children to accuse their parents in court proceedings.

Child labor remained a problem (see section 6.d.).

There were believed to be approximately 20,000 street children in major urban centers. The children were referred to government-provided shelters, but many, especially foreign migrants, reportedly avoided the shelters due to fear of being detained and expelled from the country. Approximately 280 street children were repatriated to Laos, Cambodia, and Burma during the year. According to the government, citizen street children were sent to their home provinces and placed in occupational training centers.

Street children were often left out of national reports on child labor issues, and national statistics on street children often included only citizens.

Street children were often exploited by organized gangs as beggars or to sell flowers or other items. Many of these children were forced to turn over their daily earnings to the gang and were paid less than a dollar (34 baht) a day. There were reports of street children who were bought, rented, or forcibly "borrowed" from their parents or guardians in order to beg alongside women on sidewalks and overpasses. This was particularly true in areas of the capital frequented by tourists. Working conditions for these children were poor, leaving them exposed to the elements for long periods of time and open to further exploitation.

There were many local NGOs that worked to promote children's rights. Employers' organizations, such as the Employers' Confederation of Thailand, also were involved in child labor issues. These organizations received good working support from the government.

Trafficking in Persons

The law prohibits trafficking in persons; however, the country was a source, transit, and destination for trafficking in women and children for a variety of purposes, including indentured servitude, forced labor, and prostitution. Some local officials, immigration officers, and police reportedly either were involved in trafficking directly or took bribes to ignore it. Penalties vary according to the age of the victim and the method of trafficking. In general the law provides for imprisonment of a year to life and fines of \$50 to \$1,000 (2,000 to 40,000 baht). For offenses against children between 15 and 18 years of age, the potential punishment is three to 15 years of imprisonment and a fine of \$150 to \$1,000 (6,000 to 40,000 baht). For offenses against children under 15 years of age, the penalty ranges from five to 20 years' imprisonment and a fine of \$250 to \$1,000 (10,000 to 40,000 baht). If the offense is committed with deceit, threat, physical assault, immoral influence, or other mental coercion, the sentences and fines may be increased by one-third.

In general the government cooperated with governments of other countries in the investigation of transnational crimes, including trafficking. The country has signed bilateral antitrafficking memorandums of understanding (MOUs) with Cambodia and Laos. Receiving countries generally initiated trafficking case investigations. The government continued to investigate rings associated with smuggling female citizens abroad. The Ministry of Foreign Affairs assisted 270 Thai women and girls, most victims of sexual exploitation, to return from abroad in 2005 (down from 316 in 2004). The police reported that 146 trafficking in persons cases were filed in the judicial system during 2005, representing an increase from 134 cases in 2004. The convictions from the 2004 cases included a March 2005 85-year sentence to a Cambodian woman for procuring women and underage girls for prostitution.

The law allows for extradition of citizens; however, no citizens were extradited for trafficking-related offenses. Requesting-country nationals charged with trafficking-related crimes, including pedophilia, were extradited to Japan, Australia, Germany, and the United States.

Some portion (thought by the UN, NGOs, and the government to be a minority) of the estimated 200,000 to 300,000 sex industry workers in the country were either underage or in involuntary servitude or debt bondage. Women and children (particularly girls) tended to be the most frequent trafficking victims. Anecdotal evidence suggested that the trafficking of

men, women, and children into such fields as commercial fisheries or sweatshop work was significant. Young migrant women and girls, particularly from Laos, were found employed in indentured servitude. NGOs assisted some victims to obtain back wages from abusive employers.

Within the country women were trafficked from the impoverished Northeast and the North to Bangkok for sexual exploitation. However, internal trafficking of women appeared to be on the decline, due to prevention programs and better economic opportunities. Women also were trafficked to Japan, Malaysia, Singapore, Bahrain, Australia, South Africa, Europe, and the United States chiefly for sexual exploitation but also for sweatshop labor. Men were trafficked into the country for commercial fisheries and farm, industrial, and construction labor. Prosecution of traffickers of men was complicated by the lack of coverage in the law.

Women and men were trafficked from Burma, Cambodia, the People's Republic of China (PRC), and Laos for labor and sexual exploitation. Boys and girls were trafficked chiefly from Burma and Cambodia primarily for sexual exploitation and to work in begging gangs. The government screened trafficking victims from Cambodia and Burma through cooperation between the police and the International Organization for Migration (IOM). Law enforcement officials identified victims of trafficking and referred them to one of six regional government shelters.

Entire families occasionally were trafficked for labor in sweatshops. Underage boys reportedly were brought into the country for specialized work in which small size was an advantage. According to domestic NGOs, girls between the ages of 12 and 18 continued to be trafficked from Burma, southern PRC, and Laos to work in the commercial sex industry. Social workers noted that young girls were prized because clients believed that they were free of sexually transmitted diseases. Persons trafficked from the PRC often were in transit to other countries, although women and girls from Yunnan Province generally were destined for brothels in the North. Victims of trafficking were often lured into the country or for transit to other countries, with promises of restaurant or household work and then were pressured or physically forced into prostitution.

The lack of citizenship status for some hill tribe women and children was a strong risk factor for becoming victims of trafficking. Although members of this group were not a large percentage of trafficking victims, they continued to be found in disproportionately large numbers in situations entailing severe forms of trafficking. In April the government repatriated 10 hill tribe women lacking citizenship who had been trafficked to Malaysia for prostitution in 2004. The women were repatriated after providing documentation of their prior residency or birth in the country.

Trafficking within the country and from neighboring countries into the country tended to be carried out by loosely organized small groups that often had close ties in the source communities. Burmese, Laotian, Cambodian, and Thai individuals were involved in labor trafficking along the border. Informal chains of acquaintance often were used to recruit victims. In some cases, the traffickers themselves were former victims, particularly where the sex industry was the destination.

The trafficking of Thai prostitutes abroad, and that of PRC nationals using the country as a transit point, was done by sophisticated and well-financed international criminal syndicates that sometimes cooperated with each other.

The majority of prostitutes were not kept under physical constraint, but a large number worked in debt bondage. Brothel procurers reportedly advanced parents a substantial sum against their child's future earnings. The child was then obligated to work in a brothel to repay the loan.

Because foreign women frequently were unable to speak the language and were considered illegal immigrants, they were particularly vulnerable to physical abuse and exploitation. Some women were lured into the country with promises of jobs as waitresses or domestic helpers but ended up working as prostitutes. Reports of labor trafficking were also received from Burmese migrant workers who were ostensibly offered jobs in the food processing industry, but were later induced or forcibly transported to work on fishing vessels. In September police raided a shrimp processing factory in Samut Sakhon and found more than 100 Burmese workers who had been held on the premises against their will.

Illegal immigrants had no rights to legal counsel or health care if arrested. In 2004 a series of MOUs among government agencies and between the government and domestic NGOs provided some detailed police procedures to assist with the problem of trafficked persons being detained by the authorities. The agreements stated that the training of police officers would include instructions to treat such persons as victims of human trafficking rather than as illegal immigrant workers. Instead of being deported, they would become the responsibility of the public welfare department. However, implementation of the MOUs has been erratic, due to insufficient training of law enforcement officials and their unfamiliarity with the law.

Official corruption facilitating the most severe forms of trafficking in persons was generally at the low- and mid-levels. Police personnel were poorly paid and were accustomed to taking bribes to supplement their income. There was no evidence that high-level officials benefited from or protected the practice. Compromised local police protected brothels and other sex venues, as well as factories, from surprise raids. Officials found complicit in any part of the illegal economy rarely were prosecuted but instead were moved to positions thought to limit opportunities for future corruption.

Several NGOs, both local and international, and government agencies worked with trafficking victims. The government worked with the International Labor Organization's International Program on the Elimination of Child Labor (ILO-IPEC) to implement antitrafficking projects to reduce the incidence of trafficking of children for labor and sexual exploitation. However, funds for fighting trafficking or aiding its victims were limited.

In general victims awaiting repatriation were brought to government-run shelters or, in the case of noncitizens, to NGO run shelters. The repatriation process took up to six months. Between October 2005 and September 2006, the main government shelter in Bangkok received 390 women and children from neighboring countries and 164 citizens, including women found in voluntary prostitution and domestic abuse cases. There were no reliable statistics on how many of these persons were victims of trafficking. The government provided food, medical care, and limited psychological counseling.

Trafficking victims received some legal assistance from NGOs and Department of Welfare officials, and they generally were informed of the option of pursuing legal action against the trafficking perpetrators. Relatively few opted to do so; language barriers, illiteracy, distrust of government officials, the lengthy legal processes, and fear of the traffickers played a role. Trafficked victims residing illegally in the country were not allowed to obtain employment while awaiting repatriation, even if they were involved in legal proceedings against the trafficker.

The government continued cooperative arrangements with NGOs and local industries, especially the hotel industry, to encourage youths (particularly girls) to find employment outside of the sex industry and other exploitative work. Vocational training programs aimed at high school students also received funding. Although the vocational training was not intended explicitly for trafficking prevention, the practical effect was to increase the range of choices for recent school graduates.

Persons with Disabilities

Prior to the September 19 coup d'etat, the constitution mandated access to public buildings for persons with disabilities, but laws implementing the provisions were never fully enacted. In July 2005 a law was enacted providing that newly constructed buildings have facilities for persons with disabilities. Activists continued to work to amend laws that allow employment discrimination against persons with disabilities. Persons with disabilities were legally precluded from working as police officers and as persons providing medicinal massages, although the Ministry of Health stated that it welcomed the registration of persons with disabilities as medical masseurs.

Persons with disabilities who register with the government are entitled to free medical examinations, wheelchairs, and crutches. As of August, 568,927 persons had registered as disabled. The government provided five-year, interest-free small business loans for persons with disabilities. As of September, approximately 5,600 loans have been granted.

During the year approximately 238,000 children with disabilities attended school. The government reported that 13,286 students were enrolled in the 43 special schools for students with disabilities; the remaining students were enrolled in regular public schools. The Ministry of Education reported that there were 76 centers nationwide offering special education programs

for preschool-age children. Nationwide, there were nine government-operated and 12 NGO-operated training centers for persons with disabilities. In addition there were eight private associations providing occasional trainings for persons with disabilities. There were reports of schools turning away students with disabilities. In April 2005 the minister of education received a petition requesting that the government guarantee educational opportunities for persons with disabilities. A 2002 report by the National Statistics Office said that 23 percent of registered persons with disabilities had graduated from junior high school.

Many persons with disabilities who found employment were subjected to wage discrimination. The law requires private firms to hire one person with a disability for every 200 other workers or contribute to a fund that benefits persons with disabilities, but this provision has never been enforced. Government officials estimated that between 20 and 30 percent of firms disregarded the law. Some state enterprises had discriminatory hiring policies.

National/Racial/Ethnic Minorities

Former belligerents in the Chinese civil war and their descendants, who have been in the country since the end of the civil war, and children of Vietnamese immigrants, who resided in five northeastern provinces, lived under laws and regulations that could restrict their movement, residence, education, and occupation (see section 2.d.). During the year approximately 2,300 of the Vietnamese and their descendants and 1,000 Chinese and some of their descendants were granted full citizenship.

Violence in the South exacerbated social prejudices against Muslims; however, there were no outbreaks of communal violence between the Buddhist and Muslim communities. Many Muslims complained of societal discrimination both by Buddhist citizens and by the central government. Many Muslims complained that Thai-language newspapers present a negative image of Muslims and of their communities, associating them with terrorists.

Insurgent groups in the South spread propaganda against Buddhists in the form of threatening pamphlets and flyers. There were also reports that some religious schools in the South preached hatred for non-Muslims, as well as for Muslims who cooperated with the government and security forces (see section 2.c.).

Indigenous People

Members of hill tribes without proper documentation continued to face restrictions on their movement, could not own land, and were not protected by labor laws, including minimum wage requirements. Freedom of movement was often dependent on their residency status, which was identifiable by the color of their identity cards (see section 2.d.). Citizenship is not automatically granted to children born to persons living illegally or without status in the country. Lack of citizenship makes hill tribe persons vulnerable to abuses and exploitation, such as trafficking (see section 5, Trafficking). They sometimes were denied adequate education and health care. Those residing in national parks or wildlife sanctuaries were subject to eviction (see section 1.f.). As noncitizen residents, they also were barred from participating in the political process (see section 3).

In recent years regulations eased the requirements to establish citizenship by allowing a wider range of evidence, including testimony from references and empowering local officials to decide cases. According to the Registration Administration Bureau of the Ministry of Interior, roughly 60 percent of potentially eligible candidates have received citizenship under the regulations. Although the government was supportive of efforts to register citizens and to educate eligible hill tribe persons about their rights, activists reported that widespread corruption and inefficiency at all levels, including among highland village headmen and government officials, contributed to a backlog of pending citizenship applications.

Hill tribe members continued to face societal discrimination arising in part from the belief that they were involved in drug trafficking and environmental degradation. Hill tribes occasionally were subjected to indiscriminate searches of villages for illegal drugs (see section 1.f.).

Other Societal Abuses and Discrimination

HIV/AIDS was estimated to have infected approximately 1.5 percent of the population. During the year the government took measures to improve its support of persons with HIV/AIDS. The government aggressively implemented a program to provide anti-retroviral drugs and, as of September, more than 80,000 HIV/AIDS sufferers were receiving such drugs. The government provided funds to HIV/AIDS support groups and continued public debate at the highest levels of political leadership. Societal discrimination against persons with AIDS most often was found in the form of a psychological stigma associated with rejection by family, friends, and the community. There were reports that some employers refused to hire persons who tested positive following employer-mandated blood screening.

Section 6 Worker Rights

a. The Right of Association

Prior to the September 19 coup d'etat, the constitution allowed all private sector workers to form and join trade unions of their choosing without prior authorization. Laws pertaining to private sector workers rights to form and join trade unions were unaffected by the coup and its aftermath; however, the law provides inadequate protection to workers who participate in union activities. The law prohibits antiunion actions by employers; however, it also requires that union officials be full-time employees of the company, which makes them vulnerable to employers seeking to discipline workers who serve as union officials or who attempt to form unions. Union leaders and academic observers reported that employers often discriminated against workers seeking to organize unions. The law does not protect workers from employer reprisal for union activities prior to the registration of the union, and employers could exploit this loophole to defeat efforts at union organization. During the year employers used loopholes in the Labor Relations Act to fire union leaders prior to government certification of unions. Trade union leaders can be dismissed for any reason, provided severance payment is made. In such circumstances the law does not provide for reinstatement. The labor court reinstated employees in some cases where dismissal resulted from union activity and was illegal. However, because the reinstatement process was lengthy and cost prohibitive for the employee, most cases were settled out of court through severance payments to the employee. There were no punitive sanctions for employers.

Union officials must be full-time employees of the company or state enterprise. This prohibition against permanent union staff limited the ability of unions to organize and be politically active. The Labor Relations Act allows only two outside government licensed advisors to a union, and the Ministry of Labor often blocked the registration of labor advisors whom it deemed too activist. Union leaders and outside observers complained this interfered with the ability to train union members and develop expertise in collective bargaining, and led to rapid turnover in union leaders.

Less than 4 percent of the total work force but nearly 11 percent of industrial workers and more than 50 percent of state enterprise workers were unionized. Cultural traditions, unfamiliarity with the concept of industrial relations, efforts by the government and the private sector to diminish union cohesiveness, and the sizeable agricultural and informal sectors (where unions are not permitted) were cited as reasons for low rates of labor organization.

State enterprise employees can join organizations of workers in the private sector, but only at the level of confederations. This restriction effectively divided the trade union movement along state enterprise and private sector lines. However, unofficial contacts at the union level between public and private sector workers continued, and the government did not interfere with these relationships. Unions in state-owned enterprises generally operated independently of the government and other organizations. Internal conflicts, corruption, and a lack of leadership weakened the labor movement.

Civil servants including public school teachers are prohibited from forming or registering a union. They are allowed to form and register only as associations, which have no right to bargain collectively.

Noncitizen migrant workers, whether registered or illegally present, did not have the right to form unions or serve as union officials; however, registered migrants may be members of unions organized and led by citizens. The Ministry of Labor required foreign workers to renew their temporary work status annually. About three-fourths of these foreign workers were

from Burma (see section 2.d.). Few, if any, of the registered migrants joined unions. During the year a substantial number of migrant workers worked in factories near border crossing points, where labor laws were routinely violated and few inspections were attempted to verify compliance with the law.

b. The Right to Organize and Bargain Collectively

The law provides for the right of citizen private-sector workers to organize and bargain collectively; however, the government's efforts to protect this right were weak. The law defines the mechanisms for collective bargaining and for government-assisted conciliation and arbitration in cases under dispute. In practice genuine collective bargaining occurred only in a small fraction of workplaces, and in most instances, it continued to be characterized by a lack of sophistication on the part of worker groups and autocratic attitudes on the part of employers. Wage increases for most workers came as a result of increases in the minimum wage rather than as a result of collective bargaining. The process of setting minimum wages locally through provincial tripartite wage committees may further limit union influence; many of these provincial committees excluded labor representatives and placed factory managers on the wage committees to represent worker interests. The minimum wage increase in the year again did not keep pace with inflation. The government sets wages for state enterprise employees under the State Enterprise Labor Relations Act (SELRA) (see section 6.e.). Wages for civil servants are determined by the Ministry of Finance.

The government has the authority to restrict private sector strikes that would affect national security or cause severe negative repercussions for the population at large; however, it seldom invoked this provision and did not do so during the year. Labor law also forbids strikes in "essential services," which are defined much more broadly than in the ILO criteria, and include sectors such as telecommunications, electricity, water supply, and public transportation as essential services. The law also prohibits termination of employment of legal strikers; however, some employers used unfavorable work assignments and reductions in work hours and bonuses to punish strikers. Employers are legally permitted to hire workers to replace strikers. SELRA provides public sector employees in state enterprises the same rights to organize as exist in the private sector. SELRA prohibits lockouts by employers and strikes by state enterprise workers. Strike action in the private sector was constrained by the legal requirement to call a general meeting of trade union members and to have a strike approved by 50 percent of unionists. During the year there were three legal strikes involving 348 workers, and there were six lockouts involving 803 workers.

A system of labor courts exercises judicial review over most aspects of labor law for the private sector; however, there was documented abuse in the system, including evidence that awards to workers were ignored or not paid in full. Issues of collective labor relations are adjudicated through the Tripartite Labor Relations Committee, and are subject to review by the labor courts. Workers could also seek redress through the NHRC and the Parliamentary Committee on Labor and Social Welfare, although this committee ceased functioning during the year. The law authorizes the Ministry of Labor to refer any private sector labor dispute for voluntary arbitration by a government-appointed group other than the Labor Relations Committee. Although the legal authority seldom was used, the ILO viewed this provision as acceptable only in defined essential services. Redress of grievances for state enterprise workers is handled by the State Enterprise Relations Committee. Labor leaders generally were satisfied with the treatment that their concerns received in these forums, although they complained that union leaders unjustly dismissed were awarded only back wages with no punitive sanctions against the employer. This limited any disincentive for employers to fire union organizers and activists.

There are no special laws or exemptions from regular labor laws in export processing zones (EPZs), in which wages and working conditions often were better than national norms. However, union leaders alleged that employers' associations were organized to cooperate in discouraging union organization. Unions existed in the automobile and petroleum production facilities located in EPZs.

In recent years labor brokerage firms have used a "contract labor system" under which workers sign an annual contract. Contract laborers are not covered under the Labor Relations Act or the Labor Protection Act. These workers lacked the ability to bargain collectively over wage and benefit issues. Although they may perform the same work as direct-hire workers they were paid less and received fewer, or no, benefits.

Attempts by registered migrant workers to carry out work stoppages to demand minimum and back wages, along with better working conditions, often led to deportations, resulting from apparent collusion between factory owners and local government immigration officials. There continued to be credible reports of NGO personnel being assaulted while trying to assist migrant workers.

c. Prohibition of Forced or Compulsory Labor

Prior to the September 19 coup d'etat, the constitution prohibited forced or compulsory labor, including by children, except in the case of national emergency, war, or martial law; however, the government was unable to enforce these provisions effectively in the large informal sector. Following the September 19 coup d'etat, laws pertaining to prohibition of forced or compulsory labor were unaffected, and there were no reports that the government engaged in or tolerated forced or compulsory labor. During the year there continued to be reports of sweatshops in which employers prevented workers, primarily foreign migrants, from leaving the premises. There were no estimates of the number of such sweatshops, but the large number of migrants from Burma, Cambodia, and Laos created opportunities for such abuse. NGOs and the ILO reported that thousands of underage boys and girls were brought into the country for labor on farms or in sweatshops, and very young children were used to work in street begging gangs.

Problems encountered by Thai citizens working overseas highlighted the problem of exploitative labor supply agencies that charged heavy and illegal recruitment fees often equal to all of a worker's first and second year earnings. In many cases recruited workers did not receive the terms they were promised and incurred significant debt.

Forced and compulsory labor by children occurred (see section 6.d.).

d. Prohibition of Child Labor and Minimum Age for Employment

In general sufficient legal protections exist for children in the formal economic sector. The Labor Protection Act is the primary law regulating employment of children under the age of 18. Employment of children under 15 is prohibited. However, the law does not cover the agricultural and informal sectors, including domestic work, which employ the majority of persons in the workforce, including many child workers. The law allows for issuance of ministerial regulations to address sectors not covered in the law, and since 2004 regulations increased protections for child workers in domestic and agricultural sector work. The minimum working age is coordinated with the mandatory national educational requirement. On February 28, as part of its strategy to strengthen child labor laws and enforcement procedures, the government approved the appointment of the National Committee on Eliminating the Worst Forms of Child Labor.

Child labor remained a problem, particularly in small-scale industry and agricultural sectors. Contradictory surveys by various government agencies, which largely ignored foreign children and those in illegal industries, made estimating the scope of the phenomenon difficult. According to a study funded by the Ministry of Labor and the ILO, child labor abuse of citizens was declining and citizen children made up less than 1 percent of the workforce. Abuse of underage migrant workers, especially from Burma, however, was widespread and continuing to increase.

The law permits the employment of children between the ages of 15 and 18 only in "light work," where the lifting of heavy loads and exposure to toxic materials or dangerous equipment or situations is limited. The law prohibits employment of children at night (from 10 p.m. to 6 a.m.) or in places in which alcohol is served. It was estimated that approximately one million children worked on family farms. NGOs reported that 2 to 4 percent of children between the ages of six to 14 worked illegally in urban areas; such children were at risk of becoming victims of other abuses of labor laws. Most underage workers in urban areas worked in the service sector, primarily in gasoline stations, small scale industry, and restaurants. Child labor was less evident in larger export-oriented factories. A police raid in September discovered 18 migrant workers under the age of 16 working in a shrimp processing factory south of Bangkok. NGOs also reported extensive child labor in garment factories along the Burmese border, in Mae Sot Province. However, there was no comprehensive survey of child labor throughout the country, since NGOs often did not have access to shop-house factories. NGOs reported child domestic workers were predominantly migrants from Burma, Cambodia, and Laos. Most were in the country illegally, increasing their

vulnerability to exploitation. Minimum wage and age provisions of the Labor Protection Act do not apply to domestic workers, some of whom were believed to be less than 15 years of age; however, recently issued regulations extended protections to children in the domestic and agricultural sectors. Thus far any effects of these regulations have not been measured.

The worst forms of child labor occurred in the country. Children (usually foreign) were exploited in street selling, begging, and prostitution in urban areas, sometimes in a system of debt bondage. Some were sold or otherwise trafficked by parents or other relatives. The government implemented guidelines in cooperation with the IOM to improve the screening of trafficking victims among child beggars and street vendors from Cambodia or Burma (see section 5). A 2004 ILO study noted that drug merchants in Bangkok used male children as delivery boys. Narcotics sellers preferred children because they were undemanding and were not charged as adults if arrested. Instead they were sent to police-run correctional homes.

The Ministry of Labor is the primary agency charged with enforcing child labor laws and policies. During the year there were 2,354 labor inspection officers, including labor ministry officials and policemen who registered as labor inspection officers. Enforcement of child labor laws was not rigorous, and only 736 of the registered inspection officers routinely performed inspections. There were 36,062 inspections at 31,173 establishments in 2005. Inspectors usually responded only to specific public complaints, reports of absences by teachers, or reports in newspapers. Their inclination when dealing with violators was to negotiate promises of better future behavior rather than seek prosecution and punishment. The legal requirement for a warrant hampered inspection of private homes to monitor the welfare of child domestic workers. In 2005 child labor inspections and investigations were performed in 543 firms; eight of the workplaces inspected revealed serious violations, such as employing underage workers.

In 2004 the government registered 79,200 migrant children 15 years of age and younger, the first time minors had been given temporary residence permits under migrant labor policy. Government officials stated the new measure would permit foreign children access to the public school system. NGOs reported that this new provision was implemented only if the employer of the migrant parent provided evidence regarding the parent's status to school authorities. In most cases the employer did not do so.

e. Acceptable Conditions of Work

The minimum wage ranged from \$3.75 to \$4.94 (140 baht to 184 baht) per day, depending on the cost of living in various provinces. The minimum wage was set by provincial wage committees that sometimes included only employer representatives. This wage was not adequate to provide a decent standard of living for a worker and family. The official poverty rate was 83 cents (31 baht) per day, which permitted survival only in areas where subsistence agriculture was possible. The Ministry of Labor is responsible for ensuring that employers adhere to minimum wage requirements (applicable to the formal sector); however, nationwide, academics estimated one third of formal sector workers received less than the minimum wage, especially those in rural provinces. Despite encouragement of employees to report violations to labor inspectors, the enforcement of minimum wage laws was mixed. Many labor laws, including the minimum wage law, do not apply to undocumented workers, primarily hill tribe members and illegal aliens. An estimated one to two million unskilled and semiskilled migrant workers worked for wages that were approximately one-half the minimum wage.

The government mandated a uniform workweek of 48 hours, with a limit on overtime of 35 hours per week. Employees engaged in "dangerous" work, such as in the chemical, mining, or other industries involving heavy machinery, legally may work a maximum of 35 hours per week and are not permitted overtime. The petrochemical industry is excluded from these regulations. There were reported incidents of employees forced to work overtime, with punishments and dismissals for workers who refused.

Working conditions varied widely. The official rate of injury from industrial accidents remained relatively constant over the last 10 years at 4.5 percent of the total work force. The Ministry of Labor stated that the average annual rate of work related deaths was 15 per 100,000 workers. However, these rates applied only to industrial sector workers; the rate of incidents occurring in the larger informal and agricultural sectors, and among migrant workers, was thought to be higher. Occupational diseases rarely were diagnosed or compensated, and few doctors or clinics specialized in them. The approximately 50,000

young migrant women employed in textile factories along the Burma border, had limited and substandard medical options, and many suffered from stress-related disorders and complications resulting from abortions. In medium-sized and large factories, government health and safety standards often were applied, but enforcement of safety standards was lax. In the large informal sector, health and safety protections were substandard.

Provisions of the Labor Protection Act include expanded protection for pregnant workers by prohibiting them from working on night shifts, overtime, holidays, or working with dangerous machinery or on boats. Despite the act's prohibition on dismissing pregnant workers regardless of their nationalities, there were reports of employers of migrant women firing those who became pregnant.

The Ministry of Labor promulgates health and safety regulations regarding conditions of work; however, the inspection department enforced these standards ineffectively, due to a lack of human and financial resources. There is no law affording job protection to employees who remove themselves from dangerous work situations.

Redress for workers injured in industrial accidents was rarely timely or sufficient. Few court decisions were handed down against management or owners involved in workplace disasters.

Despite the new registration process, migrant workers, especially from Burma, remained especially vulnerable to poor working conditions due to a lack of labor rights. According to Amnesty International, they were routinely paid well below the minimum wage, worked long hours in unhealthy conditions, and were at risk of arbitrary arrest and deportation. An ILO report during the year indicated that 35 to 50 percent of migrant workers in the agriculture, fishing, and manufacturing sectors had their identification and registration papers held by employers, which limited the workers' freedom of movement. In addition, 60 percent of domestic workers surveyed said they were not allowed to leave their work premises, while 82 percent said they worked more than 12 hours a day.

Enforcement of workplace laws and regulations is the responsibility of the Ministry of Labor's Department of Labor Protection and Welfare. The department has fewer than 700 fulltime inspectors to monitor more than 340,000 workplaces. Although the department has undertaken initiatives to hire additional inspectors and to deputize local government officials, the shortage of human and other resources significantly impeded effective enforcement of labor laws.

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